

The Armed Forces Tribunal (Financial and Administrative Powers) Rules, 2008

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The Armed Forces Tribunal (Financial and Administrative Powers) Rules, 2008

UNION OF INDIA

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The Armed Forces Tribunal (Financial and Administrative Powers) Rules, 2008

Rule THE-ARMED-FORCES-TRIBUNAL-FINANCIAL-AND of 2008

Published on 1 January 2008

Commenced on 1 January 2008

[This is the version of this document from 1 January 2008.]

[Note: The original publication document is not available and this content could not be verified.]

1.

Short title and commencement.

—(1) These rules may be called the Armed Forces Tribunal (Financial and Administrative Powers) Rules, 2008.

(2)

They shall come into force on the date of their publication in Official Gazette.

1. Vide S.R.O. 25(E), dated 12th September, 2008, published in the Gazette of India, Extra, Pt. II, Sec. 4, dated 12th September, 2008.

2.

Came into force on 12-9-2008.

2. Definitions.

—In these rules, unless the context otherwise requires,—(a) ‘Act’ means the Armed Forces Tribunals Act, 2007 (55 of 2007

);

(b)

“Chairperson” means the Chairperson of the Tribunal;

(c)

‘Tribunal’ means the Armed Forces Tribunal.

(1)

Vide S.R.O. 25(E), dated 12th September, 2008, published in the Gazette of India, Extra, Pt. II, Sec. 4, dated 12th September, 2008.

3.

Sitting of an additional Bench at place other than the place where it shall ordinarily sit.

—If at any time the Vice-Chairperson/Member of any additional Bench is satisfied that circumstances exist which render it necessary to have sitting of the said Bench at any place falling within its territorial jurisdiction, other than the place or places at which it ordinarily sits, he may with the previous consent of the Chairperson direct that the additional Bench shall hold its sittings at any such appropriate place.. _____(1) Vide S.R.O. 25(E), dated 12th September, 2008, published in the Gazette of India, Extra, Pt. II, Sec. 4, dated 12th September, 2008.

4.

Powers of Chairperson. —

The Chairperson shall have the same powers as are conferred on a Department of the Central Government in respect of the delegation of Financial Powers Rules, 1978, the General Financial Rules, 1963, the Fundamental and Supplementary Rules, the Central Civil Services (Leave) Rules, 1972, the Central Civil Services (Joining Time) Rules, 1979, the Central Civil Services (Conduct) Rules, 1964, the Central Civil Services (Classification, Control and Appeal) Rules, 1965 and the General Provident Fund (Central Services) Rules, 1960: Provided that the exercise of the financial powers shall be subject to any procedural or other instructions issued from time to time by the Government and after obtaining the advice of the Financial Advisor and Chief Accounts Officer of the Tribunal: Provided further that in respect of matters not within the competence of the Chairperson, concurrence of the Ministry of Finance or any other authority shall be obtained by the Chairperson through the Ministry of Defence. _____(1) Vide S.R.O. 25(E), dated 12th September, 2008, published in the Gazette of India, Extra, Pt. II, Sec. 4, dated 12th September, 2008.

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